

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006575

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ESMERALDA LARIOS

vs.

DEFENDANT: LIFE GENERATIONS
HEALTHCARE LLC, DBA SMITH RANCH
SKILLED NURSING & REHABILITATION
CENTER

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant’s motion, whether characterized as a motion for summary judgment, motion for summary adjudication, or both, is denied.

Allegations in Plaintiff’s Complaint

Plaintiff Esmeralda Larios alleges that on March 23, 2024, she was at Defendant Life Generations Healthcare LLC dba Smith Ranch Skilled Nursing & Rehabilitation Center’s facility with a client to visit her client’s mother. While she was walking outside along the sidewalk, her foot got caught in a sprinkler that was set close to the sidewalk. She stumbled and fell forward into a bench and suffered injuries. Plaintiff asserts causes of action for premises liability and negligence.

Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c(p)(2).) “A triable issue of material fact exists if the evidence reasonably permits a trier of fact to find the contested fact in favor of the plaintiff in accordance with the applicable standard of proof.” (*Bakos v. Roach* (2025) 108 Cal.App.5th 390, 395.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc. § 437c(c).) The moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) Any evidentiary doubts are resolved in favor of the opposing party. (*City of Santa Cruz v. Pacific Gas & Elec. Co.* (2000) 82 Cal.App.4th 1167, 1176.)

Defendant’s Motion

It is unclear from Defendant’s papers if Defendant is seeking summary judgment, summary adjudication, or both. The Notice of Motion and Motion and the Amended Notice of Motion state in the caption that it is a motion for summary judgment, but then in the paragraph below the caption Defendant states it is moving for an order granting summary adjudication. Defendant’s Separate Statement and Memorandum of Points and Authorities reference a motion for summary judgment only. The three declarations submitted by Defendants state that they are support of a motion for summary judgment or, in the alternative, for summary adjudication.

Given Defendant’s use of both terms, the Court will treat Defendant’s motion as a motion for summary judgment or, in the alternative, for summary adjudication. However, the Court cautions Defendant to be more careful when submitting documents with the Court.

Defendant presents the same set of 51 facts to support its motion as to all five grounds or issues identified in its Amended Notice of Motion and Motion and Separate Statement.

Evidentiary Objections

Plaintiff’s Objection No. 1 is overruled as Mr. Roman may have personal knowledge of the inspections and repairs or replacements following such inspections. Objection No. 2 is overruled to the extent Mr. Roman refers to his own personal knowledge, but is sustained as to reports generally. Objection No. 3 is sustained.

Defendant's Objection Nos. 1, 5, 6, 22, 23 and 26 are sustained because the "unsafe depth" theory was not alleged in the Complaint. The Complaint alleges only that "The sprinkler's placement so close to the sidewalk constitutes a hazardous condition and posed a foreseeable risk to pedestrians, furthermore, the placement of the bench within tripping distance of the sprinkler posed a secondary hazard to pedestrians. The negligent placement of the sprinkler, the bench, and the lack of warnings was the proximate cause of Ms. Larios' injuries." "It is well settled that the pleadings set the boundaries of the issues to be resolved at summary judgment. Thus, a defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.] To create a triable issue of material fact, the opposition evidence must be directed to issues raised by the pleadings." (*Vulk v. State Farm General Ins. Co.* (2021) 69 Cal.App.5th 243, 255 [citations and internal quotations omitted].) Further, Mr. Moore does not state that he inspected the area so he lacks personal knowledge or foundation in any event.

For the reasons discussed above, Objection No. 3 is sustained as to the language "the landscaped area was not flush with the adjacent concrete walkway", No. 4 is sustained as to the language "no warning of the elevation change", No. 7 is sustained as to the language "no warning provided to alert pedestrians of the hazardous condition that the subject change in level . . . presented", No. 8 is sustained as to the language "the subject location not only continued the subject change in level", No. 9 is sustained as to the language "of the subject change in level", No. 10 is sustained as to the language "unsafe condition the change in level", No. 11 is sustained as to the language "to make it flush with the adjacent walkway", No. 12 is sustained as to the language "unsafe condition the subject change in level", No. 13 is sustained as to the language "the subject change in level", No. 14 is sustained as to the language "to be flush with the adjacent concrete walkway", No. 24 is sustained as to the language "as the landscaped area was not flush with the adjacent concrete walkway", No. 25 is sustained as to the language "the elevation change", No. 27 is sustained as to the language "a change in level", No. 28 is sustained as to the language "the subject change in level", No. 29 is sustained as to the language "subject change in level", No. 30 is sustained as to the language "subject change in level", No. 31 is sustained as to the language "the change in level", No. 32 is sustained as to the language "to make it flush with the adjacent walkway", No. 33 is sustained as to the language "subject change in level", No. 34 is sustained as to the language "subject change in level", and No. 35 is sustained as to the language "to be flush with the adjacent concrete walkway".

Objection Nos. 15, 17, 18, 36, 38 and 39 are overruled. Mr. Moore states that the 2018 Greenbook ("Greenbook") includes certain language and attaches excerpts from the Greenbook to support his statement. At the summary judgment stage, courts must construe the opposing party's evidence liberally. (See *Garrett v. Howmedica Osteonics Corp.* (2013) 214 Cal.App.4th 173, 189.) While Mr. Moore could have done a better job authenticating the exhibit he attaches, he does include it with his declaration and Defendant does not contend that the exhibit attached is not what Mr. Moore says it is. The Greenbook is offered as the basis for some of Mr. Moore's opinions; it is not being admitted as independent proof of the facts, as that would be hearsay. Further, while Defendant argues the Greenbook is irrelevant or entitled to little weight because it pertains to public works and this case involves private property, this does not make the Greenbook or Mr. Moore's conclusions based on the Greenbook inadmissible. The same is true as to Defendant's questions about which version of the Greenbook would apply here. Defendant

will have an opportunity to challenge the strength of the reasoning behind Mr. Moore's conclusions at trial.

Mr. Moore's declaration is sufficient at the summary judgment stage. "[I]t is the jury's role to decide the weight to accord the expert testimony and courts must . . . be cautious in excluding expert testimony so as not to usurp that role. Although [t]here is no bright line that divides evidence worthy of consideration by a jury ... from evidence that is not, many . . . arguments concerning reliability may be better understood as directed at the weight of the expert testimony, not its admissibility." (*People v. Veamatahau* (2020) 9 Cal.5th 16, n. 6 [citations and internal quotations omitted].) "The trial court's gatekeeping role does not involve choosing between competing expert opinions . . . the gatekeeper's focus must be solely on principles and methodology, not on the conclusions that they generate. The trial court's preliminary determination whether the expert opinion is founded on sound logic is not a decision on its persuasiveness. The court must not weigh an opinion's probative value or substitute its own opinion for the expert's opinion. Rather, the court must simply determine whether the matter relied on can provide a reasonable basis for the opinion or whether that opinion is based on a leap of logic or conjecture. The court does not resolve scientific controversies. Rather, it conducts a circumscribed inquiry to determine whether, as a matter of logic, the studies and other information cited by experts adequately support the conclusion that the expert's general theory or technique is valid. The goal of trial court gatekeeping is simply to exclude clearly invalid and unreliable expert opinion." (*Garrett*, 214 Cal.App.4th at pp. 186-187 [citations and internal quotations omitted].) "The rule that a trial court must liberally construe the evidence submitted in opposition to a summary judgment motion applies in ruling on both the admissibility of expert testimony and its sufficiency to create a triable issue of fact. In light of the rule of liberal construction, a reasoned explanation required in an expert declaration filed in opposition to a summary judgment motion need not be as detailed or extensive as that required in expert testimony presented in support of a summary judgment motion or at trial." (*Id.* at p. 189.)

Objection Nos. 16 and 37 are sustained (hearsay) to the extent Defendant challenges the quoted portions of the Greenbook as direct evidence.

Objection Nos. 19, 21, 40, 42, 43, 45, 46, 47 and 49 are overruled for the reasons discussed above in connection with objections to the Greenbook. Objection Nos. 20, 41, 44 and 48 are sustained (hearsay) to the extent Defendant challenges the portions of ASTM F1637-19, the Orbit material, or the Dearborn Real Estate Education material as direct evidence.¹

Objection Nos. 50-54 are overruled.

To the extent Defendant's objections are not specifically sustained as set forth above, they are overruled.

Issue No. 1 (Duty)

Plaintiff's Complaint alleges that Defendant had a duty to maintain the premises in a safe manner and to warn of hazards.

¹ To the extent Mr. Moore relies on these materials to support his theory regarding a change in level, however, the materials are irrelevant as this theory was not alleged in the Complaint.

Defendant's Issue No. 1 states only that Defendant "did not owe Plaintiff a duty." Defendant does not elaborate in its Issue No. 1 what duty, specifically, it did not owe to Plaintiff. The Court assumes Defendant is referencing the two duties alleged in the Complaint. "It is well settled that the pleadings set the boundaries of the issues to be resolved at summary judgment." (*Vulk*, 69 Cal.App.5th at p. 255.)

The Court denies Defendant's motion as to Issue No. 1. The Court will not rule that Defendant did not have a duty to maintain the premises in a safe manner or to warn of hazards.

Issue No. 2 (Second Cause of Action - Negligence)

As described in Defendant's Separate Statement, Issue No. 2 is that "the negligence cause of action fails because there is no evidence to suggest that [Defendant] breached a duty of care owed to Plaintiff."

Duty is an essential element of both Plaintiff's negligence and premises liability causes of action. (See *Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 145.)

On a preliminary note, Plaintiff does not dispute in her Opposition that the location of the bench did not create a dangerous or hazardous condition, and that Defendant was not required to place warning signs by the bench. (UMF 9, 13.)

To support its contention that it did not breach a duty to maintain the premises in a safe manner or to warn of hazards, Defendant presents the following evidence:

- The sidewalk is compliant with both the American with Disability (ADA) and California Building Code (CBC) requirements for width (Defendant's Undisputed Material Fact ("UMF") 4);
- There are no local building code regulations that address how close sprinklers can be placed near sidewalks on private property (UMF 5);
- Defendant's expert Brad Wong states in his declaration that "Common practice in the building industry is to place sprinkler heads approximately 1-6 inches away from the edge, while ensuring nozzles are adjusted to spray away from the walkway . . . this practice is not to prevent tripping hazards from pedestrians, since pedestrians are not reasonably expected to be walking in the landscaped area, but rather should stay on the designated path of travel, i.e., the cement walkway" (UMF 6);
- Mr. Wong measured that the sprinkler head in question (in a corner where two pieces of sidewalk meet) was approximately 5 ¾ inches from one side of the sidewalk and 6 1/8 to the sidewalk from the other side. He concludes that as a result, the placement complied with standard industry practice for placement of landscaping sprinkler heads and did not constitute a dangerous condition (UMF 7);
- Plaintiff walked down the pathway, past the sprinkler, once and did not trip and fall that first time (UMF 21);
- Plaintiff turned back suddenly to go back to the doors to get help, carrying flowers, and tripped (UMF 25);
- Jose Pepsi Roman, Defendant's maintenance supervisor, states in his declaration that before the incident, a decision had been made to no longer use the sprinkler system in

question and that it had not been used for months if not over a year, but it was in good working order (UMF 40, 41, 44);

- Mr. Roman further states that the irrigation system was inspected at least annually and repairs were made if needed, and that he walks the premises at least daily (UMF 42, 43, 45);
- Mr. Roman states that he is aware of no other reported incidents of people tripping and falling over a sprinkler head in his 26 years working at the facility and he has not received complaints about placement of the sprinkler heads (UMF 47-49); and
- Mr. Roman states that the bench had been in its location for years before the incident and did not impede the walking path (UMF 50).

In her Opposition, Plaintiff submits the following evidence (excluding evidence relating to the change in depth theory):

- California regulations prohibit overhead irrigation within 24 inches of any non-pervious surface (Response to UMF 5);
-
- Mr. Wong's measurements were taken from the center of the mechanism that was there the day he took photographs and not the sprinkler head that was there on the day of the incident. Mr. Wong also did not measure from the edge of the sprinkler head (Response to UMF 7);
- Plaintiff testified in her deposition that when she turned around to help with someone else's wheelchair, her shoe came across the sprinkler and got caught on it. The sprinkler was on the corner and she never went onto the landscape or touched the dirt. She stayed on the concrete. She tripped because her foot was caught. The sprinkler head was "a little bit more up" relative to the surrounding area (Response to UMF 10; Plaintiff's Additional Undisputed Facts ("AUMF") 1, 3-6);
- Defendant produced two "proposals for irrigation work" from 2022 and 2023 showing issues involving the irrigation system including broken sprinkler heads (Response to UMF 44);
- Plaintiff's expert Zachary Moore states in his declaration that the location constituted a dangerous condition because there was an exposed sprinkler head, creating a trip/misstep hazard for pedestrians. Absent barriers or warnings, it is foreseeable that there will be instances of pedestrians traversing/entering the landscape area, especially if turning near the corner. The walkway turns 90 degrees adjacent to the sprinkler head location so it is foreseeable that while turning, a pedestrian's left foot could remain on the concrete walkway while their right leg and foot could swing over the corner of the landscaped area. This is true even if the sprinkler head was 5 ¾ inches away from the walkway (AUMF 7, 15);
- Mr. Moore further states that the landscaped area violated applicable industry standards reflected in the 2018 Greenbook, ASTM F1637-19, and materials from Orbit, which supplies irrigation products worldwide. Mr. Moore concludes: "the subject location . . . contained the . . . exposed sprinkler head at the time of Plaintiff's incident [and] was also in violation of applicable industry standards" (AUMF 7, 12, 16, 17); and
- Mr. Moore states that there were no barriers preventing pedestrians from traversing/entering the landscape area around the sprinkler head and no warning signs (AUMF 9-12.)

The Court denies the motion as to Issue No. 2. Breach of a duty is ordinarily a question of fact for the jury's determination. (See *Lawrence v. La Jolla Beach & Tennis Club, Inc.* (2014) 231 Cal.App.4th 11, 32.) Further, Defendant has not satisfied its initial burden to show the standard of care and a breach of that standard because its expert provides no factual basis for the conclusions he makes in his declaration. Mr. Wong, a mechanical engineer with experience in accident reconstruction and premises liability, states that based on his background, education, training and experience, he is familiar with the standard of care applicable to concrete pathways and placement/installation of sprinkler systems and sprinkler heads. He states that the intended path of travel was the sidewalk, which had a width that complied with ADA and CBC standards, and that there are no specific local building code regulations addressing how close sprinklers can be placed on sidewalks on private property. Mr. Wong then states that "Common practice in the building industry is to place sprinkler heads approximately 1-6 inches away from the edge, while ensuring nozzles are adjusted to spray away from the walkway. The main reason sprinkler heads are placed an inch or so away from the sidewalk is to protect the sprinkler head itself from damage from lawn edgers and also to minimize water spraying onto the sidewalk itself. Stated differently, this practice is not to prevent tripping hazards from pedestrians, since pedestrians are not reasonably expected to be walking in the landscaped area, but rather should stay on the designated path of travel, i.e., the cement walkway." (Declaration of Brad Wong, ¶¶6.1, 6.2.) Mr. Wong does not provide any basis or underlying support for this statement. There is no explanation where these numbers or measurements come from; Mr. Wong just states it as a fact. Mr. Wong then concludes that because the corner sprinkler head was 5 ¾ inches from one part of the sidewalk and 6 1/8 inches from the other part of the sidewalk, it "complied with standard industry practice for placement of landscaping sprinkler heads." (*Id.*, ¶6.2.) He also concludes that "Given the oversized sidewalk and the sprinkler head being installed more than 5 inches away from the sidewalk on either side, I can conclusively attest that to a reasonable degree of engineering certainty, the sprinkler head which Plaintiff allegedly tripped over, did not create a dangerous or hazardous condition in and of itself, or when someone is walking on the sidewalk using reasonable care." (*Id.*, ¶6.3.)

Based on the limited information provided in Mr. Wong's declaration, his conclusions and opinions lack foundation and are speculative and conclusory, and thus insufficient to satisfy Defendant's initial burden. (See *Zaragoza v. Adam* (2025) 109 Cal.App.5th 113, 119 ["A moving defendant's 'burden to show the absence of any genuine issue of material fact cannot be satisfied by an expert declaration consisting of ultimate facts and conclusions that are unsupported by factual detail and reasoned explanation, even if it is admitted and unopposed'"] [citation omitted]; *Lynn v. Tatitlek Support Services, Inc.* (2017) 8 Cal.App.5th 1096, 1115 ["The trial court may strike or dismiss an expert declaration filed in connection with a summary judgment motion when the declaration states expert opinions that are speculative, lack foundation, or are stated without sufficient certainty"].)

Because Defendant has failed to satisfy its initial burden, the burden does not shift to Plaintiff to raise a triable issue of fact. (See *McAlpine v. Norman* (2020) 51 Cal.App.5th 933, 938-939 ["To be entitled to summary judgment, [defendant] had the initial burden to present evidence that would require a reasonable trier of fact to find that [defendant's] treatment of [plaintiff] was within the standard of care, thereby negating an essential element of [plaintiff's] negligence claim. If [defendant] failed to meet his initial burden, the motion must be denied"].)

Plaintiff has presented sufficient evidence to raise a triable issue of fact in any event. While Mr. Moore's declaration is not particularly strong and Defendant raises questions about the reasonableness of Mr. Moore's conclusions, the declaration is sufficient to avoid summary judgment or summary adjudication.

Issue No. 3 (First Cause of Action – Premises Liability)

As described in Defendant's Separate Statement, Issue No. 3 is that "the premises liability cause of action fails because there is no evidence to suggest that [Defendant] breached a duty of care to Plaintiff." The motion as to Issue No. 3 is denied for the reasons discussed above.

Issue No. 4 (Notice)

As described in Defendant's Separate Statement, Issue No. 4 is that Defendant "was not on actual or constructive notice of the condition of the sprinkler, moreover, the condition was a trivial defect which did not require repair." To the extent this issue is part of a motion for summary adjudication, it is improper as Defendant does not tie this to the complete disposition of a cause of action, an affirmative defense, or a claim for damages. (Code Civ. Proc. § 437c(f)(1).) While Section 437c(t) allows a party to move for summary adjudication of a legal issue that does not completely dispose of a cause of action, affirmative defense, or claim for damages, the party must follow the steps set forth in that section. Defendant does not do so here, so this section is not available to it. Defendant's motion for summary adjudication is therefore denied as it pertains to its "Issue No. 4." The Court notes that there is a triable issue of material fact as to this issue in any event, as Defendant's own evidence indicates that it was aware the sprinkler head was in that location for years. (UMF 42-45.) To the extent this issue applies to a motion for summary judgment, the motion is denied as Defendant does not show how it disposes of both of Plaintiff's causes of action. (Code Civ. Proc. § 437c(a); Edmon & Karnow, Cal. Practice Guide: Civ. Procedure Before Trial (Rutter Group July 2026 Update) § 10:28 ["The result is that summary judgment lies only where the opponent has no case at all (not merely a weak case)".])

Issue No. 5 (Warning Signs)

As described in Defendant's Separate statement, Issue No. 5 is that Defendant "was not required to place warning signs by the sprinkler head or bench." The motion is denied as to "Issue No. 5" for the reasons discussed above in connection with Issue Nos. 2-4. Further, Defendant's argument that no warning signs were needed is premised on its other argument that the placement of the sprinkler head was appropriate and did not constitute a hazardous condition. If this other argument is incorrect and the sprinkler head was too close to the sidewalk, there is a triable issue as to whether some kind of warning sign for that sprinkler head would be needed.

Remaining Issues in Defendant's Motion

Defendant discusses causation in its Memorandum, but causation is not identified as a basis for Defendant's motion in the Amended Notice of Motion and Motion, or as one of the issues in Defendant's Separate Statement. (See Code Civ. Proc. § 1010; Cal. Rules of Court 3.1112, 3.1350.) Rather, these documents focus exclusively on the existence of a duty or breach

of that duty. Accordingly, the Court need not consider Defendant's arguments regarding causation. The court notes that causation is ordinarily a question of fact for the jury in any event. (*Lawrence*, 231 Cal.App.4th at p. 32.) Plaintiff presented evidence, i.e., her deposition testimony, that the sprinkler head caused her to fall. (Response to UMF 30; AUMF 1, 3, 5.) This is sufficient to raise a triable issue of fact.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006636

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PAUL SOLON

vs.

DEFENDANT: DAVID SONG ET AL.

NATURE OF PROCEEDINGS: 1) DEMURRER 2) MOTION - STRIKE

RULING

Defendants have demurred to Plaintiff's First Amended Complaint and also move to strike all portions of Plaintiff's claim for punitive damages. The Court continued the hearing on Plaintiff's motion for extension of time to oppose the demurrer. Notwithstanding the continuance, Plaintiff did not oppose the demurrer or motion to strike. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants Defendant's motions in light of the non-opposition and sustains the demurrer as to the causes of action two through fifteen with leave to amend. The Court grants the motion to strike punitive damages without leave to amend. The amended complaint shall be filed within ten days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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